

3. 9:00 AM CASE NUMBER: C23-03011
CASE NAME: ANGEL MONTOYA VS. CITY OF RICHMOND
*HEARING ON MOTION IN RE: FILE FIRST AMENDED COMPLAINT
FILED BY: MONTOYA, ANGEL

TENTATIVE RULING:

Plaintiff moves for leave to file a First Amended Complaint. Defendant specifically does not oppose filing of the First Amended Complaint attached to the motion. **The motion is granted.** The First Amended Complaint attached to the motion is to be separately filed with the court within ten days after notice of entry of this order.

4. 9:00 AM CASE NUMBER: C24-00861
CASE NAME: NAVY FEDERAL CREDIT UNION VS. FREDERICK MERRIDA
*HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS
FILED BY: NAVY FEDERAL CREDIT UNION

TENTATIVE RULING:

Granted. The agreement contained an attorney fee provision, and the amount requested is within the schedule in Local Rule 2.40. There is no opposition.

5. 9:00 AM CASE NUMBER: C24-01376
CASE NAME: XUE XIE VS. SHENG LIN
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: LIN, SHENG PING

TENTATIVE RULING:

Defendant Sheng Ping Lin's demurrer to Plaintiff Xue Fen Xie's Second Amended Complaint is **sustained without leave to amend as to the second cause of action for constructive trust. The demurrer is otherwise overruled.** Plaintiff shall prepare a proposed order consistent with this ruling and shall serve notice of entry of order.

Background

Plaintiff's Second Amended Complaint (SAC) alleges that in 2021 defendant Sheng Ping Lin told plaintiff Xue Fen Xie that if she paid the mortgage, property taxes, and utilities for the property located at 1115 Ivy Court in El Cerrito, he would add her name to the title. Plaintiff alleges that she relied on defendant's promise and paid the adjustable-rate mortgage from April 2021 through April 2024, in amounts totaling \$223,424. Plaintiff alleges that the parties' agreement was later modified to include plaintiff's payment for substantial renovations to the property, including remodeling the kitchen and improving the second floor, at a cost of \$179,564. Plaintiff alleges a further modification under which plaintiff agreed to fund the construction of an accessory dwelling unit for \$86,600. Plaintiff expended more than \$489,588 in total. Plaintiff alleges that in April 2024 defendant told plaintiff that he intended to sell the property, and when plaintiff asked him either to add her to the title or to return her money, he refused.

Based on these allegations, the complaint asserts four causes of action. The first cause of action for breach of contract alleges an oral agreement under which plaintiff would pay mortgage-related expenses and fund improvements in exchange for defendant's promise to add her to the title, and that defendant breached that agreement by refusing to do so or to reimburse her. The second cause of action for constructive trust alleges that defendant continues to hold title to the property and the